RAMBAM'S INTRODUCTION TO THE MISHNAH

Moshe Received the Torah: How the Oral Law Was Handed Down

Rambam's Intro to the Mishnah, Part 1

Source: The Rambam's Introduction to the Commentary on the Mishnah (Hebrew translation of Rav Yehudah al-Harizi), opening section

Shiur: Part 1 of the series on the Rambam's Introduction to the Mishnah, given by Dayan Daniel Kada on Zoom, Tuesday 6 May 2025

These notes are based on the Sofer.ai transcript of the recording.

Where This Series Fits

Over the past four or five years the class has studied many of the Rambam's works:

Studied	
Hilchot Talmud Torah	Laws of Torah study
Hilchot Deot	Character traits
Hilchot Yesodei HaTorah	Foundations of the Torah
The 13 Principles of Faith	
Shemonah Perakim	The introduction to Avot, winter 2024
Hilchot Teshuvah	Recently
The Letters	The past few months

Now: the Rambam's **introductions** to parts of the Talmud, "certainly until Rosh Hashanah, likely past that, because there's a lot to get through."

The Rambam's three great works

Work	Kind
Mishneh Torah	Halachic: the 14-book **codification** of the whole Torah
Commentary on the Mishnah	Halachic
Moreh Nevuchim	**Philosophical**: his magnum opus in that field

"More precious to me than everything I teach"

In the **Letter on Resurrection** the Rambam describes great scholars, steeped in halachah from youth, who don't know the **basic philosophical principles** of the Torah. One even doubted whether Hashem has a body. So whenever his halachic writing gives an opening, he **digresses into faith**. At the end of his commentary on Berachot he explains:

ואין זה מקום להביא שם הדבר הזה, לולי אשר כוונתי כשיבוא זכר דבר בעניין האמונה לבאר בו מעט, כי יקר בעיני ללמד עיקר מעיקרי הדת ואמונה יותר מכל אשר אלמדהו.

This isn't the place for it, but my purpose, whenever something touches on faith, is to explain a little, **because teaching one principle of faith is more precious to me than anything else I teach.**

The same habit shows in the Mishneh Torah, which often ends a section with an idea to think about.

The four great "digressions"

	Where	What it covers
1	**Introduction to Avot** (*Shemonah Perakim*)	Character and basic philosophy: **already studied**
2	**Introduction to Chapter 10 of Sanhedrin** (*Perek Helek*)	**כל ישראל יש להם חלק לעולם הבא**: what earns and what forfeits Olam HaBa, and the **13 Principles**
3	**Introduction to the Mishneh Torah**	Mainly the **transmission** of Torah
4	**Introduction to the Mishnah**	**The whole concept of Rabbinic law**: **this series**

The plan: the Introduction to the Mishnah over **May, June and early July**; then the short **Introduction to the Mishneh Torah**, which links neatly; then, after Sukkot, through the winter, **Perek Helek** and the principles of faith.

Why this matters so much

The Introduction to the Mishnah answers the questions we usually take for granted:

- How do we know there **is** an Oral Torah?

- Why should we trust what the **Sages** said?

- What is the **status of the Talmud**?

- **Why do the Sages argue so much**, all the way through the Mishnah and Talmud? (Intellectual, halachic disputes, "not the political kind")

- What are **aggadah** and **midrash**?

- What are a **Mishnah, baraita, Tosefta, Talmud**?

"I promise you, if we study this properly, you'll come out with such a clear understanding of the Oral Law, of rabbinic arguments, of midrash. **If I had ten things my son must do before he goes to yeshivah, this would be one of them.** You can't go to yeshivah and not know this. Unfortunately I only learned it much later in life, and so many questions I had in yeshivah would have been answered."

About the text

- The Commentary on the Mishnah was the Rambam's **first** Jewish work, written **between about 20 and 23**, and corrected throughout his life (we see this in the manuscripts). "Remarkable, when you think what he writes here, at such a young age."
- Written in **Arabic**, so the masses could understand it; translated into Hebrew by different people for different parts. This introduction was translated by **Rav Yehudah al-Harizi**, the text used in class. ("Not the best text. Next week we'll use a different one.")

Part 1: Every Mitzvah Came With Its Explanation

דע כי כל מצוה שנתן הקדוש ברוך הוא למשה רבינו עליו השלום, נתנה לו בפירושה.

Know that every mitzvah Hashem gave Moshe was given **with its explanation**: He would tell him the mitzvah, and then its explanation and meaning.

How Moshe taught each mitzvah (from the Gemara, Eruvin 54b)

Step	Who comes in	Where they sit
1	**Aharon** alone; Moshe teaches him the mitzvah and its explanation	Aharon sits at Moshe's **right**
2	**Elazar and Itamar**, Aharon's sons (Nadav and Avihu have died)	One at Moshe's **left**, one at Aharon's **right**
3	**The 70 elders**	
4	**The whole people**, "anyone who sought Hashem"	

Then the teaching passes down the line:

Teacher	Teaches
Moshe (leaves after teaching four times)	Aharon → sons → elders → people
Aharon (leaves after teaching once)	Repeats it to all
Elazar and Itamar	Repeat it to the elders and the people
The elders	Repeat it to the people

The result: everyone hears it four times.

	From Moshe	From Aharon	From his sons	From the elders	Total
Aharon	4				**4**
Elazar & Itamar	3	1			**4**
The elders	2	1	1		**4**
The people	1	1	1	1	**4**

Then the people **teach one another**, **write the mitzvah itself in scrolls**, and go around until everyone can read it, and learn its **explanation**, which is the **tradition** (*kabbalah*).

Why the Rambam spells this out

He is building a picture of a **yeshivah**: the rosh yeshivah gives a shiur, the students analyse it, discuss it, go back and ask. Teaching passes from one to the next, and **people discuss and pass it on**.

"Four times": where have we seen that?

In the **Letter on Martyrdom**, mocking the rabbi who answered without thinking: anything said in public should be examined **at least four times**, and anything written, "theoretically a thousand." For the Rambam, **you haven't properly learned something until you've learned it four times**.

Written scroll by scroll

The Gemara debates whether the Torah was written as **one book** at the end of forty years or **מגילה מגילה**, scroll by scroll. The Rambam clearly holds **scroll by scroll**: each mitzvah was written when given, discussed, and then the next came.

"The whole Torah was given at Sinai": it's "not precise" to imagine Moshe received all 613 mitzvot and their explanation on Shavuot. On Shavuot he received the **Ten Commandments**; over the next forty days, **Mishpatim**; then he taught, went back for more. **Pesach Sheni**, the **daughters of Tzelofchad**, the laws in Bamidbar came later. "A process of forty years." (The Rabbi has a separate pre-Shavuot shiur on what "given at Sinai" means, with three or four explanations.)

Part 2: The Example of Sukkah

The **Baraita** (Sifra, Behar):

> **מה ענין שמיטה אצל הר סיני? והלא כל התורה כולה נאמרה מסיני! אלא מה שמיטה נאמרה כללותיה ופרטותיה ודקדוקיה מסיני, אף כולן נאמרו כללותיהן ודקדוקיהן מסיני.**

Why mention Sinai with Shemittah, when the whole Torah was said at Sinai? To teach that just as Shemittah's **principles, details and fine points** came from Sinai, so did **all** the mitzvot.

("By the end of this introduction you'll know exactly what a Mishnah, baraita, Tosefta and Talmud are.")

What the verse says, and what Moshe was told

בסכת תשבו שבעת ימים: "**Four words**." In sukkot you shall dwell seven days.

What is a sukkah? What does "dwell" mean: sit, live, sleep, build my bathroom there? What does "seven days" mean? Minimum size, maximum, height, materials?

Told to Moshe orally
It applies to **men, not women**
The **sick** and **travellers** are exempt
The covering (*sechach*) must be something that **grows from the ground**
Not **wool**, not **silk**
Not **utensils**, even if from plants: **pillows, cushions, garments**
Eating, drinking and sleeping there is the whole obligation
Minimum **7 × 7 tefachim**
At least **10 tefachim** high

And so with all 613 mitzvot: the mitzvot in writing, their explanation by mouth.

You can't read the Torah without it

וקשרתם לאות על ידך והיו לטטפת בין עיניך: what, *where* on the hand ("the hand's a big place"), what are *totafot*?

לא תעשה כל מלאכה: "Your definition of work is different from mine. **Some people will tell you going to the gym is *melachah*.**" Moshe was told there are **39 forbidden labours**, and taught it.

Part 3: The Last Thirty-Seven Days

In the fortieth year, on **Rosh Chodesh Shevat**, Moshe gathered the people: **"My time to die has come. Whoever heard a halachah and forgot it, let him come and I'll repeat it. Whoever has a question, let him come and ask."**

The Sifrei: **כל מי ששכח הלכה אחת יבוא וישנה, וכל מי שצריך פירוש יבוא ויתפרש. הואיל משה באר את התורה הזאת.**

From **Rosh Chodesh Shevat to 7 Adar**, **37 days**, Moshe did nothing but review and clarify. Then, at **midday** on 7 Adar (**בעצם היום הזה**), he went up the mountain.

His death was "for us": **we** lost him. **משה רבנו לא מת אלא עלה ומשמש במרום**: Moshe didn't die; he ascended and serves above. "These matters are very long, and not needed here."

Why stress all this? The Rambam is painting **an intact transmission**: forty years of mitzvot, each taught **four times**, discussed and written, then a final chance to review everything.

Part 4: Where Do Disputes Come From?

After Moshe died, **Yehoshua** and his generation studied what he had left.

כל מה שקבל משה... לא תהיה עליו מחלוקת.

Whatever was received from Moshe: **there is no dispute about it.**

Whatever they had not heard from the Prophet, the **branches** of those roots, they derived **by reasoning**, through **the thirteen principles given at Sinai**. Some of these rulings were **agreed**; on some **a dispute arose**: *this one says so, that one says so*. **When a dispute arose, they followed the majority**: **אחרי רבים להטות**.

The question

If the Torah was handed down with such care, taught four times and reviewed at the end, **why is there so much argument?**

The Rambam's answer, "so crucial, and different from how others understood it"

Don't make the terrible mistake of thinking disputes arose from **"Chinese whispers"**: that as time passed, people garbled what was transmitted. "He goes very strongly against this." (More in a couple of weeks.)

	Roots: given by Hashem to Moshe	Branches: derived later
Transmission	Moshe → Yehoshua → elders → prophets… (**Avot 1:1**)	Worked out by the Sages, and **long before** the Talmud, even in the prophets' time
Dispute?	**Never**	**Possible**
Sukkah	Eat, drink and sleep in it; the sick are exempt. "No one argues about that" (sleeping in the cold is "a medieval argument," much later)	E.g. **how high** a sukkah may be, if that wasn't given
Four species	"**etrog**. "No argument = **פרי עץ הדר**	

How the branches are derived: the **thirteen principles** of **Rabbi Yishmael** (**בשלש עשרה מדות התורה נדרשת**), said every morning in Shacharit, "because **the whole Oral Law is based on this**." (Strictly there are **32**; these are the main 13.) Different principles can lead to **different conclusions**, and that's where dispute comes from. "We'll see why it **intensified** later."

Organic growth. "Branches grow organically from the roots. **An extrapolation can't contradict the roots.**" Recent movements that "took the roots and **reinterpreted** them": "it doesn't work like that. The roots, given from Hashem to Moshe, **cannot be changed**."

Coming later: if everything goes back to Sinai, what is the special category **הלכה למשה מסיני**? "We'll see."

Question from the class

If Israel hadn't sinned with the Golden Calf and the spies, they'd have entered the Land after a few months. Wouldn't Moshe then have received everything at Sinai?

"No. Moshe would simply have **continued**: he'd have entered the Land, and teaching would have gone on for years more. It's **100% clear** Moshe didn't get the whole Torah on Shavuot. **Pesach Sheni, Tzelofchad, Rosh Chodesh**: just look at the Torah. **It was an ongoing process.**"

Part 5: A Prophet Has No Edge in Interpretation

The Rambam now takes issue with **Rav Saadia Gaon** ("those on Monday nights know his *Emunot veDeot*").

ודע שהנבואה אינה מועילה בפירוש התורה ובהוצאת ענפי המצות בשלש עשרה מדות.

Prophecy **gives no advantage** in interpreting the Torah or deriving the branches through the thirteen principles.

What Yehoshua and Pinchas could do by study and reasoning, Ravina and Rav Ashi can do.

"Ravina and Rav Ashi, a thousand or more years later, far below Yehoshua and Pinchas in prophecy: **in extrapolation they're equal.** Don't tell me *I'm a prophet, so my interpretation is better*."

So what *is* a prophet's advantage? "**חי נפשי**, by my life, so much depends on this principle." But first he must explain the kinds of prophecy.

Miracles don't prove a prophet

Most people get this wrong, even some important ones, imagining that prophecy is established only by **a wondrous sign**: like Moshe's, like **Eliyahu** reviving **the widow's son**, like **Elisha's** miracles.

That's **Rav Saadia Gaon** (*Emunot veDeot*, essay 3): **if he can't do miracles, he's not a prophet.**

The Rambam: "No, no, no, no. It's not true." Eliyahu and Elisha didn't perform miracles **to prove** their prophecy, which **was already established**. They did them **because the situation needed it** (to revive a child), and Hashem fulfils the wishes of the righteous. **Prophecy is proven by something else**, which depends on dividing prophecy into two kinds: **next week**.

Summary

1. **The series:** the Rambam's introductions, starting with the **Introduction to the Mishnah**: the Oral Law, its transmission, the Sages' authority, why they argue, aggadah and midrash. "One of ten things before yeshivah."
2. The Rambam digresses into faith wherever he can: **"more precious to me than anything else I teach."** His four great digressions: **Avot, Perek Helek, Mishneh Torah, Mishnah**.
3. **Every mitzvah came with its explanation.** Moshe taught each one so that **everyone heard it four times**; they discussed it, **wrote it scroll by scroll**, and passed it on. **Sukkah** shows how little the verse says alone.
4. The Torah came over **forty years**, not in one day at Sinai, and in the **last 37 days** Moshe reviewed everything.
5. **What came from Sinai is never disputed.** Disputes arise only in the **branches**, derived through the **13 principles**, and were settled **by majority**. **Not "Chinese whispers."** Branches must grow **from** the roots, never against them.
6. **Prophecy gives no edge in interpretation**: **Ravina and Rav Ashi = Yehoshua and Pinchas**. **Miracles don't prove a prophet**, against **Rav Saadia Gaon**.

Coming Up

Next week: the **two kinds of prophecy**, how a prophet is verified, and **what a prophet's real advantage is**, "**חי נפשי**, so much depends on it."

Watch or listen to this shiur: youtu.be/bwoDjkPI6hg · More shiurim: rabbikada.com